

HOUSE BILL 629

By Hardaway

AN ACT to amend Tennessee Code Annotated, Title 37;
Title 39; Title 40, Chapter 11 and Title 49, relative
to juveniles.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 37-1-128(a), is amended by adding the following new subdivision:

(3) If the court appoints a person or entity to take charge of a child pursuant to subdivision (a)(1), then the court may order the child to wear a global positioning monitoring system device and order the entity that operates the global positioning monitoring system to notify the appointed person or entity if the child violates the instructions issued by the court upon release. As used in this subdivision (a)(3), "global positioning monitoring system" means the same as defined in § 40-11-152.

SECTION 2. Tennessee Code Annotated, Section 49-6-3401(g), is amended by redesignating subdivision (g)(5) as subdivision (g)(5)(A), by deleting the language "subdivision (g)(5)" wherever it appears and substituting instead the language "subdivision (g)(5)(A)", and by adding the following as a new subdivision (g)(5)(B):

(B)

(i) If a student is expelled for committing a zero tolerance offense for threatening mass violence on school property or at a school-related activity in accordance with this section, then the director of schools or the head of the public charter school shall require the student to undergo counseling and a mental health evaluation to determine whether the student is a threat to

themselves or to others before the student may return to school, regardless of whether the student has completed the term of the student's expulsion.

(ii) The mental health evaluation required in subdivision (g)(5)(B)(i) must be conducted on an outpatient basis by a mental health agency or a licensed private practitioner designated by the commissioner of mental health and substance abuse services. The evaluator shall report its findings to the director of schools or the head of the public charter school. A report submitted to a director of schools or head of a public charter school pursuant to this subdivision (g)(5)(B)(ii) is confidential and must not be shared with others, except as may otherwise be required by law.

(iii) The costs of the counseling and mental health evaluation required pursuant to subdivision (g)(5)(B)(i) must be borne by the student's parents or the student, if the student is eighteen (18) years of age or older.

SECTION 3. Tennessee Code Annotated, Section 49-6-4002(e)(5), is amended by deleting "§ 49-6-3401(g)(5)" and substituting "§ 49-6-3401(g)(5)(A)".

SECTION 4. Tennessee Code Annotated, Section 49-6-4301(a)(3), is amended by deleting "§ 49-6-3401(g)(5)" and substituting "§ 49-6-3401(g)(5)(A)".

SECTION 5. This act takes effect July 1, 2025, the public welfare requiring it, and applies to actions occurring on or after that date.